



Forthcoming judgments and decisions

The European Court of Human Rights will be notifying in writing seven judgments on Tuesday 26 November 2019 and seven judgments and / or decisions on Thursday 28 November 2019.

Press releases and texts of the judgments and decisions will be available at 10 a.m. (local time) on the Court's Internet site (www.echr.coe.int)

Tuesday 26 November 2019

[Yaşar v. Romania \(application no. 64863/13\)](#)

The applicant, Erol Yaşar, is a Turkish national who was born in 1971 and lives in Çayırılı (Turkey).

The case concerns the confiscation of Mr Yaşar's vessel because it had been used for illegal fishing in the Black Sea.

The vessel was confiscated in 2010 when criminal proceedings were brought against its captain, Kadir Dikmen, who had been using it on the basis of a verbal agreement with Mr Yaşar.

Mr Dikmen was convicted in 2012 following a simplified procedure based on him acknowledging, in particular, that he had been fishing without a permit for the vessel and had used fishing equipment without authorisation. In the proceedings Mr Yaşar had submitted a copy of his title to the vessel, which he said had been "caught without his knowledge within Romanian territorial waters".

The judgment became final as concerned Mr Dikmen, but the case was sent for retrial with regard to the confiscation. The courts considered that the confiscation measure had not been taken following an adversarial procedure as the vessel's owner had not been summoned in the proceedings against Mr Dikmen.

In the second set of proceedings, Mr Yaşar was summoned and represented by a lawyer of his choice who argued that confiscation was disproportionate, given the significant value of the vessel and the absence of any proven damage. However, in a final judgment in 2013, the courts found that Mr Yaşar had to have been aware that the vessel had been used for the offences in question, given the presence on board of equipment used specifically for illegal fishing, which he had claimed as his own. They also referred to the gravity of the crime committed using the confiscated vessel, involving potential damage to protected fish stocks in the Black Sea and frequent injuries to dolphins.

Relying on Article 1 of Protocol No. 1 (protection of property) to the European Convention on Human Rights, Mr Yaşar alleges that the confiscation of his vessel was unlawful and disproportionate.

[Abdyusheva and Others v. Russia \(nos. 62964/10, 58502/11, and 55683/13\)](#)

The applicants, Aleksey Vladimirovich Kurmanayevskiy, Irina Nikolayevna Abdyusheva and Ivan Vasilyevich Anoshkin, are three Russian nationals, born in 1981, 1966 and 1980, living in Kazan, Kaliningrad and Tolyatti. The case concerns their requests to be prescribed replacement substances to treat their opioid addiction.

Mr Kurmanayevskiy has taken drugs since 1994 and was monitored from 1997 by doctors from the toxicology unit of Tatarstan, a State medical institution responsible for treating drug addicts. In December 2010 he requested opioid replacement therapy using methadone. In January 2011 the Commission responsible for examining his request refused it on the grounds that neither the federal

law of 8 January 1998, nor the 1998 order of the Federal Ministry of Health concerning the procedures for the treatment of drug addicts, had provided for opioid replacement therapy using methadone and buprenorphine. The Sovetski District Court of Kazan dismissed the applicant's claim. It found that the WHO recommendation of replacement therapy was optional in nature and that the law prohibited the use of methadone and buprenorphine for the treatment of drug addicts. The Supreme Court of Tatarstan upheld the judgment on appeal.

Ms Abdyusheva has been taking opioids since 1984, when she was first monitored by doctors from the toxicology unit of Kaliningrad. She sent her request for replacement therapy to the Ministry of Health of Kaliningrad Region and, in January 2011, the regional toxicological unit refused it on the grounds that the requested replacement substances were prohibited by law. The court dismissed the applicant's claim and the Regional Court of Kaliningrad upheld the judgment on appeal. Ms Abdyusheva presented a report drawn up by a medical commission, made up of two toxicologists and a psychiatrist from a non-governmental organisation, the Ukrainian Institute of Public Health Research. The doctors indicated that the patient needed replacement therapy of the kind requested and that this treatment was recommended for patients infected with the hepatitis C virus or HIV, which was the applicant's case. In response, a medical certificate issued on 15 September 2015 by a commission of doctors specialising in toxicology stated that replacement therapy using methadone and buprenorphine did not remove the opioid addiction or result in remission. It pointed out that the proper application of medical and social rehabilitation methods would lead to efficient results regardless of the stage of the addiction.

Mr Anoshkin has taken opioids since 1994. In April 2012 he sent the same request as the other applicants to the Health Ministry for the Region of Samara. The Ministry informed him that the substances in question were prohibited by law and suggested that he follow the conventional treatment. Mr Anoshkin appealed to the courts but his case was dismissed on the same grounds.

Relying on Article 8 (right to respect for private life) of the European Convention, the applicants allege that the failure to provide them with replacement therapy for their opioid addiction using methadone and buprenorphine breached their right to respect for their private life. Mr Anoshkin and Ms Abdyusheva complain that the ban on replacement therapy is discriminatory against drug addicts. Relying on Article 3 (prohibition of inhuman or degrading treatment) separately and taken together with Article 14 (prohibition of discrimination), the applicants argue that the refusal of the Russian authorities can be seen as inhuman and degrading treatment.

[Belugin v. Russia \(no. 2991/06\)](#)

The applicant, Dmitriy Belugin, is a Russian national who was born in 1976 and is currently serving a 20-year sentence in Tomsk (Russia) for robbery and murder.

The case essentially concerns his allegation that his conviction was based on a confession he had been forced into making while in police custody.

Mr Belugin was arrested on 25 December 2002 on suspicion of assault. A court released him two days later after a hearing on his detention, but he was immediately re-arrested. While in custody between 25 and 26 December he confessed to robbery and murder. However, he subsequently retracted all his statements, alleging that they had been made under duress.

He was examined on 30 December 2002 by a doctor who reported bruises on the back of his head and right temple and abrasions on his wrists which could have been sustained between three and five days beforehand.

In 2003 and then in 2012, the authorities refused to institute criminal proceedings over Mr Belugin's ill-treatment allegations, each time finding that the injuries in the doctor's report had been sustained because he had resisted arrest. Mr Belugin did not appeal against either of these decisions.

Mr Belugin was convicted in June 2006 on three counts of robbery and murder and given his 20-year sentence. The trial court relied on the self-incriminating statements he had made during his police custody. It refused his request that the statements be declared inadmissible because they had been obtained as a result of beatings by the police and in the absence of a lawyer, concluding that his injuries had to have been caused after the detention hearing, that is to say on 27 December 2002 and therefore after he had made the self-incriminating statements.

Relying on Article 3 (prohibition of inhuman or degrading treatment), Mr Belugin alleges that he was ill-treated in police custody and that the investigation into his allegation was inadequate. He also alleges that his detention on 25 December was unrecorded and therefore unlawful, in breach of Article 5 § 1 (right to liberty and security). Lastly, he complains that his conviction was based on a forced confession made in the absence of a lawyer, in breach of Article 6 §§ 1 and 3 (c) (right to a fair trial and right to legal assistance of own choosing).

[Kravchuk v. Russia \(no. 10899/12\)](#)

The applicant, Leonid Titovich Kravchuk, is a Russian national who was born in 1961 and lives in Sochi. The case concerns the expropriation of his land for the 2014 Winter Olympics.

In 2011, in connection with the organisation of the 2014 Winter Olympics in Sochi, the authorities decided to expropriate a plot of land of 608 sq. m belonging to Mr Kravchuk. In order to determine the amount of compensation, the authorities commissioned a report which estimated the value of the land at 5,726,752 roubles (RUB) (about 143,168 euros (EUR)). Disagreeing with that report, Mr Kravchuk asked the authorities to increase the amount. He ordered a report himself from a different company and it estimated the market value of the land at RUB 7,877,300 (about EUR 195,800).

As Mr Kravchuk refused to part with his land for the amount proposed, the authorities initiated expropriation proceedings.

On 13 July 2011 the District Court of Adler (Region of Krasnodar) ordered the expropriation of the land for the amount given in the report commissioned by the authorities. Mr Kravchuk appealed on points of law but the District Court's judgment was upheld.

Relying on Article 6 § 1 (right to a fair trial) and Article 1 of Protocol No. 1 (protection of property), the applicant complains that the amount of the compensation paid to him was much lower than the value of his land. He alleges that the domestic courts did not allow him to submit his evidence and he criticises the legislation for not enabling him to challenge the amount.

[Savenko \(Limonov\) v. Russia \(no. 29088/08\)](#)

The applicant, Eduard Savenko, is a Russian national who was born in 1943 and lives in Moscow. He is an opposition politician and author, who writes under the *nom de plume* Eduard Limonov.

The case concerns defamation proceedings brought against him by the mayor of Moscow.

Mr Savenko took part in a live radio debate in 2007 on Radio Free Europe/Radio Liberty (RFE/RL), which focussed on a court decision upholding the Moscow authorities' refusal to authorise a rally, known as the Dissenters' March. Mr Savenko, one of the leaders of a broad coalition of opposition groups involved in organising such rallies, expressed the view that the Moscow courts were controlled by the mayor of Moscow.

The mayor subsequently lodged a defamation claim against Mr Savenko, which a district court in Moscow granted in full. The court found that his statement had implied that the courts were not independent because they had never found against the mayor.

This judgment was upheld on appeal in 2008 by the Moscow City Court, which further found that Mr Savenko's statement had undermined public confidence in the authorities, and that it had caused

particular moral suffering to the mayor, who was not an ordinary citizen but an elected head of the executive.

The court awarded the mayor the full amount of damages that he had claimed, ordering Mr Savenko and the radio station to each pay 500,000 roubles (approximately 14,000 euros) to him.

The courts subsequently denied Mr Savenko's request to pay the award in instalments and then, in 2009, permanently restricted his right to leave Russia as he had failed to pay the amount in full.

Relying on Article 10 (freedom of expression), Mr Savenko complains about the judgments in the defamation claim against him, alleging in particular that the fine was excessively large.

[M.M.B. v. Slovakia \(no. 6318/17\)](#)

The applicant, Ms M.M.B., is a Slovak national who was born in 2008 and lives in Košice (Slovakia). The application was brought on her behalf by her mother.

The case concerns her complaint about the authorities' investigation into allegations of sexual abuse by her father.

In 2012 the applicant's mother approached a specialised centre because she suspected that her daughter had been sexually abused by her father. Psychologists at the centre stated that the applicant's unusual behaviour could be attributable to child abuse.

There followed two investigations during which seven diverging expert reports were drawn up. Some of the experts could not identify any signs of sexual abuse and concluded that the applicant had a vivid imagination, while others found that she could not have invented some of her stories without having experienced them in the past. The experts' assessments of the applicant's mother and father were also conflicting.

The seventh expert report, which the investigating authorities had requested from a research institute in order to address those divergences, decided that it was highly probable that the applicant had experienced sexual abuse. It said that any inconsistencies in the applicant's revelations could be explained by the fact of an ongoing process which could involve changes in her behaviour and position. It also stressed that her drawings showed a likelihood of sexual abuse.

However, in 2015 the investigator discontinued the father's criminal prosecution because the seventh report's conclusions were not sufficient to prove that abuse had occurred. The investigator referred back to the findings in the other reports that the applicant confused reality with imagination, that the father showed no signs of sexual deviation or aggression and that the mother might have manipulated the applicant.

Relying on Article 3 (prohibition of inhuman or degrading treatment) and Article 8 (right to respect for private and family life), the applicant complains that the authorities failed to carry out an effective investigation into her allegations of sexual abuse. She alleges in particular that the authorities terminated the prosecution, even though experts confirmed that she had been abused.

Thursday 28 November 2019

[Mustafa v. Bulgaria \(no. 1230/17\)](#)

The applicant, Hyusein Ahmed Mustafa, is a Bulgarian national who was born in 1976. He lives in Burgas (Bulgaria).

The case concerns Mr Mustafa, a civilian, being tried by a military court for ordinary criminal offences.

In 2011 Mr Mustafa was charged with the organisation and leadership of a criminal group whose aim was to obtain various financial benefits, and with illegal trafficking in high-value goods and objects

for commercial purposes. On account of the connection between the charges against the presumed members of this group and the fact that one of them had been in the armed forces at the time, all the defendants were tried by a military court.

In 2015 the court, made up of a military judge and two jurors, sentenced Mr Mustafa to five years' imprisonment and fined him about 10,226 euros. The judgment was upheld by the Military Court of Appeal, on which three military judges sat. Mr Mustafa appealed on points of law, challenging, among other arguments, the independence and impartiality of the military courts.

In 2016 the Supreme Court of Cassation upheld Mr Mustafa's conviction for illegal cross-border trafficking and acquitted him of the charges of organising and leading a criminal group. The sentence was reduced to three years' imprisonment and the amount of the fine remained the same.

In addition, the Supreme Court of Cassation took the view that the status of the military judges afforded sufficient safeguards to preserve their independence and impartiality; that they enjoyed the same constitutional safeguards as those applying to civil judges and were subject to the same rules on pay, discipline and promotion. It added that, even though they had military grades, they were not career officers and their grades had been given to them by the administrative head of the court to which they had been appointed.

Relying on Article 6 § 1 (right to a fair hearing), Mr Mustafa complains that he was tried, as a civilian, by military courts, which in his submission are neither independent nor impartial.

The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.

These rulings can be consulted from the day of their delivery on the Court's online database [HUDOC](#). They will not appear in the press release issued on that day.

Tuesday 26 November 2019

Name	Main application number
Berasategui Escudero and Arriaga Arruabarrena v. Spain	33637/17

Thursday 28 November 2019

Name	Main application number
Kullasepp v. Estonia	7651/17
Konkurrenten.no AS v. Norway	47341/15
Vladimirova v. Russia	33077/09
Caride Simón v. Spain	8802/17
Masuta v. Switzerland	23385/15
Beskryla v. Ukraine	15198/17

This press release is a document produced by the Registry. It does not bind the Court. Decisions, judgments and further information about the Court can be found on www.echr.coe.int. To receive the Court's press releases, please subscribe here: www.echr.coe.int/RSS/en or follow us on Twitter [@ECHRpress](https://twitter.com/ECHRpress).

Press contacts

echrpress@echr.coe.int | tel: +33 3 90 21 42 08

Tracey Turner-Tretz (tel: + 33 3 88 41 35 30)

Denis Lambert (tel: + 33 3 90 21 41 09)

Inci Ertekin (tel: + 33 3 90 21 55 30)

Patrick Lannin (tel: + 33 3 90 21 44 18)

The European Court of Human Rights was set up in Strasbourg by the Council of Europe Member States in 1959 to deal with alleged violations of the 1950 European Convention on Human Rights.